

STATE OF NEW YORK

7364--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. PAULIN -- read once and referred to the Committee on Health -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to automated identification of eligible participants for the Medicare savings program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The social services law is amended by adding a new section
2 131-sss to read as follows:

3 § 131-sss. Automated identification of program participants. 1. For
4 the purposes of this section, the following terms shall have the follow-
5 ing meanings:

6 (a) "Office" shall mean the state office of temporary and disability
7 assistance.

8 (b) "Department" shall mean the state department of health.

9 (c) "SNAP" shall mean the supplemental nutrition assistance program
10 administered by the state office of temporary and disability assistance.

11 (d) "MSP" shall mean the Medicare savings program administered by the
12 state department of health.

13 2. The office shall update the SNAP application to allow program
14 participants to consent, in a manner that is separate and apart from
15 other requests for consent contained in the application, to the exchange
16 of such participant's information to verify such enrollee's eligibility
17 for MSP enrollment.

18 3. The office shall coordinate with the department to facilitate the
19 secure transmission of data through an interface with the office's
20 information technology infrastructure.

21 4. No less than once per quarter, the office, upon receipt of the
22 required data elements from the department shall conduct automated file
23 matching to identify SNAP program participants who seem to be eligible

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 for MSP. Within forty-five days of receipt that the SNAP program
2 participant's eligibility for MSP is confirmed, the department shall
3 enroll such SNAP participant in MSP.

4 5. If the office and department determine that a federal agency must
5 authorize a qualifying program to participate in the file-matching proc-
6 ess, the office and department shall request such federal agency to
7 authorize the program to participate. The office and department shall
8 inform the assembly, the senate, and the governor of its determination
9 regarding the need for federal agency authorization and provide a copy
10 of the authorization request. The office and department shall provide
11 updates to the assembly speaker, senate majority leader and the governor
12 every ninety days until such federal agency has provided a final deter-
13 mination regarding authorization.

14 § 2. This act shall take effect on the one hundredth day after it
15 shall have become a law.